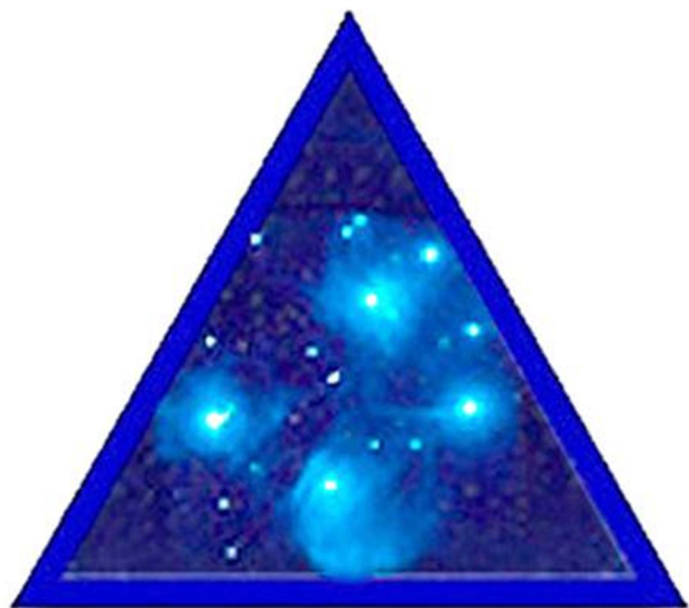




**SABER COLLEGE**  
"Gateway To The Stars"

**Policies and Procedures  
Manual**

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## **A WORD ABOUT SABER**

Welcome to SPANISH-AMERICAN BASIC EDUCATION AND REHABILITATION, INC. (SABER). As an employee of our organization you have many opportunities to provide for your own financial well being and to further your career. The "Profile of S.A.B.E.R.'s Benefits" is designed to assist you in meeting some of your responsibilities, and in taking advantage of the many opportunities offered by our organization.

This manual is always available to you at your supervisor's office. In it, you will find an explanation of the many important benefits offered to you, as well as general work rules, special programs and general information about our organization. You are urged to review the contents carefully and retain/copy any information you desire in a convenient place for future reference.

As changes occur, the manual will be updated. We urge you to review the manual periodically, to stay abreast of any changes, additions, or deletions. This is not meant to be a burden to you, but it is one of the means by which we can keep you informed.

If there is anything you do not understand, do not hesitate to ask your immediate supervisor or contact the Personnel Department.

Revised 07/01/2023

## **PHILOSOPHY**

The philosophy of SABER is to act as a vehicle to educate, rehabilitate and provide vocational and language training. Also to provide housing assistance and counseling as needed in order to help individuals in their adaptation to the economic and social life of the United States.

It is the purpose of the SABER to contribute to the economic growth and development of the local community through training programs and activities that help to improve job skills, secure/retain/create better career opportunities for its residents, as well as generate new career opportunities for those persons who apply themselves. SABER would like to be part in the process of incorporation of so many diverse elements into the many opportunities that this great nation offers and thus help and assist needy and hard to serve persons to improve their standard of living and facilitate their integration within the community where they establish their residence.

## **MISSION**

SABER identifies as its primary responsibility the preparation of individuals to become productive members of this society by helping them in their growth to attain educational goals and their development of ethical responsibilities.

## **OBJECTIVE OF THE HANDBOOK**

To provide policies and procedures, in writing, concerning admissions, attendance, vacations, holidays and any other matters related to staff life. Each staff must familiarize him/herself with this handbook and use it as a resource tool in understanding rules and regulations.

Staff and Faculty are responsible for reviewing the Rules and Regulations Handbook periodically in order to make sure that they are aware of the latest updates and/or changes.

# **PERSONNEL RULES AND REGULATIONS**

## **Separations**

### **A. Resignations**

- An employee who resigns should present reasons in writing to the Corporation.
- Said employee will notify the Corporation head and will give at least two weeks' notice prior to last day of work.
- Said employee will leave work up to date and will train new person if so asked by the administration.
- Any employee not complying with above requirements will forfeit payment of accumulated annual leave hours.

### **B. Abandonment of Position**

- An employee who is absent without authorized leave of absence for three (3) consecutive workdays shall be deemed to have abandoned the position and to have resigned. An employee who separates under such circumstances shall not have the right of appeal; however, any such employee shall have the right to petition the Director, within seven (7) working days, for a review of the facts in the case and a ruling as to whether the circumstances constitute abandonment of position.
- Each employee separated under conditions of abandonment of position shall be notified in writing by registered mail to the last reported address, return receipt requested. The decision of the Director shall be final and binding on both the employee and the Corporation.

### **C. Dismissals**

- A dismissal is defined as the action taken by a Department Head against an employee.
- A Corporation head may dismiss any employee for just cause. Just cause shall include, but not be limited to, negligence, inefficiency, excessive absenteeism, or

inability to perform assigned duties; insubordination; willful violation of the provisions of these or Corporation rules and regulations; conduct unbecoming a public employee, misconduct, drunkenness, or conviction of any crime involving moral turpitude, etc. Excessive absenteeism will be evaluated taking into consideration the role of the position and the impact the absences have on the better functioning of the agency.

**NOTICE:**

In cases of dismissal, resignation or abandonment,  
Corporation will deny any Unemployment Compensation claims.

**EMPLOYEE HIRING AND RECRUITING**

All appointments to SABER shall be made according to merit and fitness. Merit and fitness may be ascertained by the SABER Employment Application Form, a resume of the applicant including copy of degree, official transcripts, and pertinent licenses when required, and interviews which shall relate to those matters which will test fairly the capacity and fitness of the candidates to discharge efficiently the duties of the position for which the interviews are held.

These interviews may take into consideration such factors as education, experience, aptitude, knowledge, character, physical fitness, or any other qualifications or attributes which in the judgment of the Program Director enter into the determination of the relative fitness of the applicant.

Notices of job vacancies will be regularly advertised in the following:

- Any technological means that will make accessible the available position(s) to the members of the community.

These ads shall run for a minimum of one day prior to the scheduling of any application cut-off dates, interviews, or other hiring and selection procedures. Qualification standards will call for the minimum education and experience necessary for successful job performances; substitution of education for experience or experience for education will be acceptable when reflected in the Job Description. SABER reserves the right to draw on applications already submitted as a result of previous recruitment efforts.

All ads shall include an equivalent phrase, "We are an Equal Employment Opportunity Employer", and shall avoid any reference to male or female in listing job requirements.

The position of Chief Executive Officer of the Corporation will be exempted from all Rules and Regulations included in the Personnel Manual pertaining the hiring of a person to assume said responsibilities, including but not limited to those concerning the advertisement of the position and/or any competitive procedures and considerations that might be part of the Rules and Regulations concerning the remaining staff positions.

The Chief Executive Officer of the Corporation will be also the Director Head of any and all programs administered by the Corporation unless otherwise decided by the Board of Directors.

## **PROBATIONARY PERIOD**

The period employees will be required to serve in probationary status.

All appointments shall be probationary for a period of six (6) months. At any time prior to expiration of the probationary period the department head or his designated subordinate may remove or demote the employee from the position. Although no charges are required and no appeal is permitted, the employee may be informed of the reasons for his termination or demotion. Time served in a trainee status shall not be construed as probationary time. All employees will serve a normal probationary period as stated in this section.

Time served as temporary or part time will not be credited toward the probationary period. Extension of the probationary period by the department head is final and may not be appealed.

Sick and annual leave will be accrued and may be used during probationary period.

An employee who is working during his/her probationary period and leaves the Corporation, is laid-off or is terminated from employment will not be paid for accrued vacation time.

## **TEMPORARY EMPLOYEES**

An employee working under temporary status will not be entitled to any benefits.

## **SELF EMPLOYED EMPLOYEES**

An employee working at SABER as an independent contractor provides work or services on a contractual basis, The contractor will provide his own tools, ie computer, syllabi. Before entering into a contract the contractor will negotiate his acceptable pay rate and will choose type of instruction he is willing to provide (lecture or clinical) and choose time of instruction. The contractor agrees he will behave in a professional manner and will conduct himself appropriately.

## **ATTENDANCE AND LEAVE**

### **Statement of Policy**

1. Corporation shall operate on a full time (40 hour minimum) workweek except in authorized specific holidays and other activities within the workweek.
2. The workweek for each full-time employee shall be determined by the Director. The workweek shall be no less than 40 hours during a given five (5) day period.
3. The granting of any leave of absence with or without pay shall be requested in writing and shall be approved by the proper authority within the Corporation.
4. Any leave of absence with or without pay shall be approved prior to the leave being

taken, except in the case of an emergency where the employee must be absent prior to receiving approval from proper authority for the absence.

**A.** When prior approval cannot be obtained by the employee due to such emergencies, the Corporation head shall take one of the following actions:

- a)** Grant the employee leave with pay for the absence, provided the employee has sufficient accrued leave credits to cover the absence.
- b)** Place the employee on leave without pay for the absence, or
- c)** If the absence is for three (3) consecutive workdays, consider the employee to have abandoned the position and resigned.

## **Hours of Work**

- 1.** Employees filling Executive or Administrative positions are compensated on a performance basis. Provided they perform all the requirements of their positions they will be compensated with the established salary for that position.
- 2.** Other full time employees shall be required to be present on their assigned job for the total hours in the established workday and workweek (minimum 40 hrs/wk) unless absence from duty is authorized by appropriate authority in accordance with the provisions of this section.

Established workday hours are anywhere between the hours of Monday through Friday:

9:00 a.m. to 10:30 p.m. (1/2 hour lunch) and

Saturday/Sunday: 9:00 a.m. to 6:00 p.m.

At the discretion of the Corporation Head other schedules may be approved. Staff members will be advised, either in writing or orally, of work hours, work schedules amount of hours to be worked for the specific position by the Chief Executive Officer or his/her designee.

**TARDINESS** - Regulations will be as follows:

10 min. late (15 minutes will be deducted from annual leave)

15 min. late (1/2 hour will be deducted from annual leave)

Over 15 min. (1 full hour will be deducted to 1/2 hour from annual leave late)

Any time over that will be deducted on an hourly basis.

All employees are expected to work overtime when such is deemed necessary by the Corporation head.

- 3 Contracted employees will follow the contractual agreement

**CLINICAL STUDENT TO INSTRUCTOR (S) RATIOS**

1. The number of program faculty members equals at least one faculty member directly supervising every 12 students unless the written agreement between the program and the agency, facility, or organization providing clinical training site allows more students, not to exceed 12 students, to be directly supervised by one program faculty member.
2. For a hospital setting, indirect supervision may occur only if there is direct supervision by an assigned clinical preceptor, a supervising program faculty member is available by telephone, and such arrangement must be approved by the Clinical Facility.
3. For community-based clinical experiences that involve student participation in invasive or complex nursing activities, students must be directly supervised by a program faculty member or clinical preceptor and such arrangement must be approved by the community-based clinical facility.
4. For community-based clinical experiences not defined in immediately preceding paragraph, indirect supervision may occur only when a supervising program faculty member is available to the student by telephone.



## **Record Keeping**

1. The administration will keep an accurate record of all hours worked by each employee, as well as a complete records of all authorized leave which is approved.
2. The ultimate decision on a dispute over the accuracy and proper maintenance of all attendance and leave records rests with the Corporation Head.
3. Falsification of any attendance or leave records shall be a cause for dismissal of the employee or employees involved

## **Overtime (More than 40 hours per week)**

1. Overtime is defined as work performed by any employee beyond the established workday whenever duties beyond the scope of the position are required and not to complete work to accomplish established goals.
2. Staff person may not work overtime unless previously requested and approved by supervisor. Violation of this rule will result in loss of compensatory time and/or termination from employment.
3. An employee may not enter the premises without prior written authorization outside of their regular established work hours. Violation of this rule may result in immediate dismissal.

## **Holidays and Other Authorized Activities**

1. These days may be changed when necessary in order to conform to changes in corresponding legislation.

The following holidays shall be observed by the Corporation:

|                |                        |
|----------------|------------------------|
| <b>2023</b>    |                        |
| January 4      | Classes Begin          |
| January 16     | Martin Luther King Jr. |
| February 20    | President's Day        |
| April 6-7      | Spring Break           |
| May 29         | Memorial Day           |
| July 4         | Independence Day       |
| August 7 to 13 | Summer Break           |
| September 4    | Labor Day              |
| October 9      | Columbus Day           |
| November 10    | Veteran's Day          |
| November 23-24 | Thanksgiving           |
| December 20    | Last Day of Class      |
| December 21    | Winter Break Begins    |

If a holiday falls on a weekend, the holiday may be moved to the previous Friday or the following Monday at the discretion of the Director.

2. Employees who are on annual/sick leave when holidays allowed in this section occur or a State Day of Mourning is declared, shall not have such days charged against their accrued leave credits.
3. Each department head may allow employees one work break during the first half of their work shift, one work break during the second half of their work shift, and either one half hour or one hour for lunch provided that:
  - a) No single work break shall exceed 15 minutes absence from the employee's work station.
  - b) An employee may not accumulate unused work breaks or lunch hours.
  - c) Work break or lunch time shall not be authorized for covering an employee's late arrival on duty or early departure from duty.

## **Staff Retirement, Group Health Insurance and Life Insurance**

Employees of SABER will receive these benefits provided:

- 1.** Corporation has enough funds to cover them.
- 2.** Board of Directors approves them as recommended by Staff.

- a.** Staff Retirement

Executive Staff will participate in a Section 162 Bonus Plan contribution that will be made on behalf of each employee in proportion to their salary, years of service and position.

- b.** All staff will participate in a Retirement Plan upon completion of one year of Service with the Corporation. A contribution will be made on behalf of each employee based on salary, provided funds are available.

- c.** Group Health Insurance

SABER will provide its employees with full or partial Health Insurance Benefits and may at any time upon the discretion of the Board include employee's family members. Amount covered by SABER may vary.

All above benefits may be covered by SABER at the discretion of the Board of Directors upon staff recommendation and may change from year to year.

## Annual Leave

### A. Method of earning annual leave

1. All full time employees who are filling established positions shall earn annual leave as shown in the following table:

| <b>Continued and Creditable Service</b> | <b>Hours of Leave Earned during Pay Period Bi-Weekly</b> |
|-----------------------------------------|----------------------------------------------------------|
| Up to 10 years                          | 4 hours                                                  |
| Over 10 years                           | 6 hours                                                  |

Employees not in an Executive or Administrative position who work less than a full pay period will earn a percentage of actual time worked vs. total hours.

2. Annual leave earned during any pay period shall be credited to the employee on the last day of that pay period or, in the case of separation, on the last day the employee is on the payroll.

An employee may transfer annual leave hours accrued during any fiscal year into the new fiscal year as long as the projected hours for the new fiscal year added to the transferred hours do not exceed the following criteria:

| <b>TOTAL</b>   | <b>MAX. HOURS</b> | <b>TRANSFERABLE</b> |
|----------------|-------------------|---------------------|
| Up to 10 years | 144 hours         | 40 hours            |
| Over 10 years  | 212 hours         | 56 hours            |

Any person, upon separation from work must:

- a. give two (2) weeks prior notice.
- b. have their work up to date and have trained the person assigned to take over his/her duties.

**3.**

- a) Each Department Head should make every effort to insure that earned annual leave is used on a current yearly basis in order to provide employees with vacation and proper rest and relaxation.
- b) Annual leave earned, as per table above must be used during that fiscal year or forfeited at the close of business on each fiscal year.

A Department Head may deny an annual leave request if employee is needed by Corporation during any particular period. In this case employee will be allowed to transfer time accrued as outlined above.

**B. Used of earned annual leave**

- 1. As indicated, annual leave should be used to provide periodic vacation; however, earned annual leave may be used for any other purpose when authorized by the Director.
- 2. An employee who is not filling an executive or administrative position and who has accrued compensatory leave credits shall be required to first use such leave before using accrued annual leave credits.
- 3. Upon reasonable notice, a Department Head may require any employee to use any part of the employee's accrued annual leave for vacation purposes at any time this is deemed advisable.

## **Sick Leave**

**A. Method of earning sick leave**

- 1. All full time employees filling established positions who are paid on a biweekly basis shall earn hours of sick leave as reflected under Annual Leave (A.L.) Page 11.
- 2. During leaves of absence with pay, an employee shall continue to earn sick leave credits.

3. Sick leave earned during any pay period shall be credited to the employee on the last day of that pay period or, in the case of separation on the last day the employee is on the payroll.

Accrued sick leave hours will not be paid upon termination of employment.

4. There shall be a limit on the number of hours of sick leave an employee may accrue as follows:

| <b>Continued and Creditable Service</b> | <b>Hours of Leave Earned during Pay Period Bi-Weekly</b> |
|-----------------------------------------|----------------------------------------------------------|
| Up to 10 years                          | 4 hours                                                  |
| Over 10 years                           | 6 hours                                                  |

An employee may not transfer sick leave hours accrued during any fiscal year into the new fiscal year.

## **B. Use of earned sick leave**

- 1.** Use of sick leave shall be credited to the employee and shall only be used with the approval of the Director. When:  
The employee's personal appointments with a doctor, dentists, or other recognized practitioner is not possible to be arranged for off-duty hours.
- 2.** Upon request, an employee shall be allowed to use accrued sick leave credits as provided in this section.
  - a.** Prior to authorizing an employee to use sick leave credits, the Chief Executive Officer may require the employee to certify that the absence was for reasons which are justified.
  - b.** After three (3) workdays of absence in any month, the Chief Executive Officer may require a medical certification of the employee's illness before authorizing any additional use of sick leave credits by the employee.
  - c.** After three (3) consecutive workdays of absence the employee shall submit to the Director/Principal a medical certification from the attending physician before any additional use of sick leave credits can be authorized for the employee. If the employee continues to be absent, the Chief Executive Officer shall require further medical certification for each ten (10) consecutive days of absence, unless the Chief Executive Officer has personal knowledge that the employee is hospitalized and unable to return to work. Such medical certification must state that the employee is unable to perform the regularly assigned duties if sick leave is to be authorized by the Chief Executive Officer.
  - d.** An employee who, upon request by the CAO, refuses to comply with these rules may be terminated from employment.
- 3.** An employee who becomes ill while on approved annual leave or maternity leave shall be allowed to use accrued sick leave credits to cover the period of illness.

4. An employee who has accrued compensatory leave credits may be allowed to first use such leave before using accrued sick leave credits.

## **Disability Leave with pay**

1. An employee who sustains a job-connected disability that is compensable under the Workmen's Compensation Law shall be able to use accrued sick leave credits.
2. If the employee is unable to resume work at the end of the seven (7) calendar-day period the employee's case may be reviewed by a physician appointed and paid by the Corporation, and the Corporation shall determine the action they wish to take regarding the matter.

## **Administrative Leave**

### **Court**

1. An employee who is summoned as a member of a jury panel shall be granted administrative leave with pay, and any jury fees shall be retained by the employee. The Corporation shall not reimburse the employee for meals lodging, and travel expenses incurred while serving as a juror.
2. An employee subpoenaed in line of duty to represent the Corporation as a witness or defendant shall not be granted administrative leave, and appearance in such cases shall be considered a part of the employee's job assignment.
3. In no cases shall administrative leave with pay be granted for court attendance when an employee is engaged in personal litigation; however, an employee may be granted annual leave in such cases with the approval of the immediate supervisor.

### **Elections**

An employee who lives at such distance from assigned work location as to preclude voting outside of working hours may be authorized a maximum of one hour of leave without pay for this purpose. An employee shall not be granted administrative leave to work at the polls during elections.

### **Political Activities**

SABER shall not utilize its administrative offices and equipment for political activities. (Political activities are defined to include sponsoring or conducting candidates meetings, providing voter transportation and/or other partisan political activities).

SABER personnel are prohibited from participating in political activities while active on the job.

## **Educational Leave with Pay**

- A.** Enrollment in short courses, seminars, conferences, or less than full-time at a college, university, or training academy which is required as part of an employee's job shall not be considered educational leave, but shall be considered a part of the employee's work assignment.
- B.** When an employee requests leave for the purpose of furthering education and when such leave does not conform to the provisions mentioned above, the employee may be granted annual or compensatory leave at the discretion of the Chief Executive Officer and the employee shall be required to work extra hours in an amount equal to the time absent.

## **Leave of Absence without Pay**

### **Maternity Leave**

1. An employee who is pregnant or who adopts a child shall, upon written request, be granted a leave of absence without pay for maternity purposes as follows:
  - a. In the case of pregnancy, the period of maternity leave shall not exceed three (3) calendar months and shall not be approved earlier than two (2) months before the anticipated date of birth.
  - b. In the case of child adoption, the period of maternity leave shall not exceed three (3) calendar months.
2. While the granting of maternity leave is mandatory, the immediate supervisor may grant a regular leave of absence prior to the effective date of maternity leave.
3. While maternity leave is leave without pay, the employee, upon being granted maternity leave, may request and if approved by the Chief Executive Officer, be placed on annual or sick leave with pay until all or any part of the employee's leave has been used.
4. However, if the employee requests that annual or sick leave not be used during the maternity leave period, the Chief Executive Officer shall permit the employee to retain the leave credits and place the employee immediately on leave without pay.
5. Prior to being placed on a maternity leave of absence, any illness caused or contributed to by pregnancy or miscarriage shall be treated as a temporary illness and the employee shall be allowed to use accrued sick leave.
6. While on maternity leave, the employee shall be allowed to use accrued sick leave credits.

### **Other leave without pay**

An employee may, upon request, be granted leave without pay for reasons other than those mentioned above, for a period not exceeding two (2) weeks provided the Corporation deems such leave to be justified and not detrimental to the operations of the Corporation

### **Limitations of leave without pay**

An employee shall not earn annual or sick leave credits while on any type of leave without pay.

## **EMPLOYEE PERFORMANCE EVALUATIONS**

### **Statement of Policy**

- A.** The Chief Executive Officer has established written procedures for evaluating the performance of all employees on an impartial basis. All procedures have been established in accordance with the provisions herein.
- B.** Each employee's performance shall be evaluated at least once a year.
- C.** Employees shall not be expected to meet performance standards which have not been defined and explained as part of the requirements of their positions.
- D.** Employee performance evaluations may be used for, but not limited to, the following purposes:
  - 1.** To inform the employee of strong and weak points, as well as training needs and improvements expected.
  - 2.** To recognize the employee's potential for promotion.
  - 3.** As a basis for taking disciplinary actions against the employee.
  - 4.** To assist in determining the order of layoff and reinstatement.

### **Required Procedures**

- A. Each Corporation's employee performance evaluation program shall provide overall evaluations of five (5) levels as follows:
1. Outstanding
  2. Above Satisfactory
  3. Satisfactory
  4. Conditional
  5. Unsatisfactory
- B. All performance evaluations shall be made by the employee's immediate supervisor and reviewed by a higher-level supervisor. The immediate supervisor's final evaluation may be changed by higher-level supervisors.
- C. Special performance evaluations may be given at any time, at the discretion of the supervisor; however, when an employee's performance is less than satisfactory, the supervisor shall prepare a performance evaluation on the employee.
- D. All performance evaluations shall be made following the SABER Evaluation Form.
- E. Personnel Manager shall be responsible for filling out the Evaluation Review Checklist, during the last month of SABER's fiscal year, to ensure that all personnel have been evaluated.

## **COMPLAINT AND GRIEVANCE PROCEDURES FOR FACULTY AND STAFF**

Grievance – anyone who feels he/she may have been unjustly treated may appeal the policy or procedure. The purpose of this process is to provide an equitable process of resolving faculty grievances. Anyone with a complaint should discuss it first with their immediate supervisor. If conflict is unresolved, he/she may then submit a written grievance and meet with the Dean of Academic Affairs (DAA) and/or Director within three days of having met with supervisor. DAA must inform SABER College's Chief Administrative Officer of the grievance within 24 hours of meeting with person. If at this point conflict remains unresolved, appellant can then meet with the Academic Affairs Committee, comprised of faculty and administrative staff. The appellant will be able to

equitably express their position on the issue, and if available, provide documentation to substantiate their position. The Academic Affairs Committee will consider all sides and render a decision on the disposition of the policy violation or other issue. Provisions for resolutions shall be concluded within ten (10) business days after receipt of the written grievances.

In cases when these informal meetings do not resolve the conflict, appellant may then appeal and file a grievance to:

**Commission for Independent Education**

325 West Gaines Street  
Suite 1414  
Tallahassee, FL 32399-0400  
(850) 245-3200

**Council on Occupational Education**

7840 Roswell Road, Building 300  
Suite 325  
Atlanta, Ga. 30350  
Toll free: (800) 917-2081  
[www.council.org](http://www.council.org)

## **ACADEMIC GOVERNANCE**

The faculty of SABER College shall participate in the administration of academic policy, ensuring that all policies students and faculty must adhere to are followed. Faculty is responsible for ensuring that all outlined learning objectives are delivered in the academic process. Faculty shall perform post course assessment to ensure that all objectives were delivered and that policy related to administering academic delivery were met. Faculty shall participate in the development and revision of programming they shall have prevue in the process in the areas they teach. Faculty involvement is a critical element of programmatic and student success. Inasmuch, faculty shall participate in the development or selection of course materials including text, reference, equipment, supplies, resources, and any ancillary reading or tools that shall be administered to students.

Faculty shall participate in a systematic evaluation and revision of the curriculum annually. They shall meet with program staff and administration to discuss the curriculum, present data and information concerning changes in the career of study if any changes exist) and shall explain the rationale for the changes recommended.

Faculty shall participate in the assessment of student learning outcomes, and shall play a pivotal role in the process of executing plans for institutional effectiveness. Program Directors shall include all faculties to participate in the aforementioned processes.

## **ACADEMIC FREEDOM**

SABER College is dedicated to the transmission and advancement of knowledge and understanding. Academic freedom is essential to the achievement of these purposes. Academic freedom is the particular freedom of instructors within the College to pursue knowledge, speak, and write without unreasonable restriction. Programs have academic freedom to design and teach an appropriate professional curriculum, and are able to determine the mechanisms for student evaluation and academic progression in the program. SABER administrators support those decisions made by program faculty. Instructors are entitled to freedom in the classroom in discussing their subject, but they should be careful not to introduce controversial material into their teaching which has no relation to their subject. Instructors must carry out their responsibilities in a professional and ethical manner. As professional educators, instructors must be accurate, exercise appropriate restraint, show respect for the opinions of others, and make every effort to indicate they are not speaking for the institution. The principles of academic freedom shall not prevent the College from making the proper efforts to ensure the best possible instruction for all students in accordance with the mission and objectives of SABER College and/or the Program of study. Any instructor who believes that he/she has been denied academic freedom should follow SABER College's complaint and grievance procedures.

### **Library and Resource Center**

The library at SABER College supports the curricula offered by the college. The library and resource center is available to faculty and students. A librarian or an assistant librarian is available during scheduled hours to assist in locating library materials, as well as instructing them in the effective use of library resources including Internet access. The faculty performs an invaluable service in evaluating the library resources and in recommending new acquisitions in their areas of expertise. Please make these recommendations to the librarian or the appropriate department head.

### **Reserved Parking**

The faculty, staff, and administration of SABER College have access to reserved and safe parking. The parking lot on campus has 2 attendants during school hours.

## **Faculty Resources**

The faculty at SABER College is provided with offices and equipment to fulfill their faculty role. The faculty is provided with adequate technology to perform their duties. An IT department is available to faculty for technology support.

## **COMPLAINTS AND GRIEVANCES FILED BY INDIVIDUALS THAT FALL OUTSIDE OF NORMAL DUE PROCESS.**

- Step 1** Any individual may file an oral complaint or may appeal any action of the institution to the Dean of Academic Affairs (DAA), coordinator or supervisor within seven (7) days of the incident or knowledge of the incident which gave rise to the grievance or complaint. The DAA, supervisor manager or coordinator shall respond verbally to the individual within seven (7) days.
- Step 2** If the appeal or grievance has not been satisfactorily resolved at Step #1 the individual must appeal by reducing the appeal to writing and presenting it to the Dean of Academic Affairs (7) days from the time the supervisor's response was due in Step #1. Dean of Academic Affairs in turn will call for a meeting of the Academic Affairs Committee to hear the case.
- Step 3** The Academic Affairs Committee shall conduct a hearing after notice upon the charges and the Chairman shall transmit his findings-of-facts, conclusions and any recommendations together with a transcript of all evidence taken before him and all exhibits received by him to the Chief Executive Officer, within seven (7) days from the date the written grievance was received. The Chairman will act as liaison person between Corporation and aggrieved party.
- Step 4** The Chief Executive Officer, upon review of the Advisory findings of the Committee, will transmit Notification to the individual by certified mail within seven (7) days from the date the decision of the Chief Executive Officer was received.

In cases where these procedures do not resolve the conflict, if the conflict is school related, aggrieved party may then appeal and file a grievance to:

**Commission for Independent Education**

325 West Gaines Street  
Suite 1414  
Tallahassee, FL 32399-0400  
(850) 245-3200

**Council on Occupational Education**

7840 Roswell Road, Building 300  
Suite 325  
Atlanta, Ga. 30350  
Toll free: (800) 917-2081  
[www.council.org](http://www.council.org)

**Commission on Accreditation in Physical Therapy Education (CAPTE)**

1111 N Fairfax St.  
Alexandria, Virginia  
(703) 706-3245  
[www.capteonline.org](http://www.capteonline.org)

**For student grievances please refer to School Catalog.**

## **DRESS CODE/PERSONAL APPEARANCE POLICY**

### **Policy**

All employees are expected to report to work dressed in an appropriate manner, which includes a neat, clean and professional appearance. The agency has adopted a Business Casual Dress Policy as our dress standard Monday through Thursday. Fridays are considered Casual Dress Day. Good personal grooming and hygiene are required when conducting any activity on behalf of the school. This policy is intended to define appropriate “Casual Business Attire” during normal business operations and “Casual Attire” on Fridays. SABER’s Casual Business Dress Code Policy is a benefit and must be adhered to in order to be retained.

## **Procedure**

SABER wishes to provide a work environment that is free of safety hazards, offensive behavior and harassment of any kind. At the same time, to ensure a proper dress code that promotes a positive agency image to our clients, staff and general public while encouraging safety, these guidelines should be followed by all staff.

## **Guidelines**

In keeping with the current dress code, the need for proper appearance from all staff is expected. Therefore, the following guidelines of dress are expected from all employees:

### **Monday through Thursday**

Dress code applies to ALL employees regardless of their position, employment status, schedule or place of work. Only certain positions due to their nature will have approved variations like wearing scrubs in medical areas. Choose business casual clothing that communicates professionalism.

Keep your workday schedule into account when you are dressing. Casual business attire means clothing that allows employees to be comfortable at work, yet appropriate for a professional environment. Casual business attire includes, but is not limited to: slacks, khakis, Chinos, Dockers, corduroy, polo and cotton shirts, skirts, dresses and loafers. Clothing should be worn and fit in such a manner that it does not expose the abdomen, chest or buttocks areas.

1. SABER's Casual Business Attire policy includes dresses, dress slacks, blouses, ties, dress shirts and dress shoes if staff chooses to, or the situation requires it.
2. Staff must NOT WEAR jeans, shorts, Capri pants, bib overalls, halter tops, beachwear, work-out attire, tank tops, tee-shirts, spaghetti straps, work-out attire, spandex or other form-fitting pants or distracting, offensive or revealing clothes. In addition, staff cannot wear athletic shoes, thongs, or flip-flops. Clothing should be free of sexually related references, foul language, or suggest or promote the use of illegal drugs.

**Friday**

1. The same guidelines for casual dress attire Monday through Thursday apply on Fridays with the exception that jeans, tee shirts, sweatshirts and athletic shoes are allowed to be worn. All clothing should be neat in appearance and without tears, patches or holes.
2. Keep in mind that tee-shirts and sweatshirts should not contain offensive slogans or pictures.
3. Business reasons might require employees to wear business attire on casual day.

While SABER observes a CASUAL BUSINESS DRESS environment, there may be situations requiring more formal attire. Attendance or participation in meetings, seminars, committees, etc. while representing SABER will imply that staff is required to dress in a professional manner.

Directors, managers and supervisors are expected to follow, promote and enforce these dress and grooming standards in their areas of responsibility. If a particular situation requires staff to deviate from this policy on a specific occasion, management approval should be requested.

**Food Policy**

There is a lounge where you may have your lunch. Lunch is not to be eaten on reception areas or your office unless your door is closed. If you do not have a door to your office then please use the school lounge to have your meals.

Every person in an enclosed office area shall endeavor not to disrupt the living environment of their co-workers in their vicinity by the generation of offensive odors through food, beverages, or other substances, and shall cooperate in the measures of SABER's rules regarding the preservation of the living environment by prevention of offensive odors.

Be considerate with your fellow employees when eating food or bringing into the workplace articles that are offensive in their odor.

Any employee failing to meet these standards will be counseled by his/her supervisor. SABER management is authorized to direct staff to leave work if they do not comply with dress requirements, are not well groomed or lack personal hygiene, until the dress, grooming or personal hygiene is acceptable. SABER's disciplinary process will be applied due to repeated disregard for this dress and grooming policy up to and including termination of employment. Disciplinary action will be applied as follows:

|                           |                          |
|---------------------------|--------------------------|
| 1 <sup>st</sup> violation | Verbal Warning           |
| 2 <sup>nd</sup> violation | Written Warning          |
| 3 <sup>rd</sup> violation | Final Warning/Suspension |
| 4th violation             | Termination              |

## **Pets Policy**

Pets are not allowed on premises during office hours.

SABER reserves the right to continue, extend, revise or revoke this policy at its discretion.

## **DRUG AND ALCOHOL POLICY**

SABER recognizes the pervasive presence of alcohol and substance abuse in our society and adverse effect on employee's health, safety, and productivity in the work place. This has caused the Corporation to establish an effective, fair, and lawful drug and alcohol testing policy governing SABER employees.

The Board of Directors has issued an enactment describing the guidelines for drug and alcohol testing based upon reasonable suspicion of drug or alcohol use.

A positive, confirmed test for excessive alcohol use, or use of unlawful substances will be the basis for the automatic rejection of an applicant.

A positive, confirmed test for excessive alcohol use, or use of unlawful substances for a current employee, will reported to the employee's supervisor for administrative and disciplinary action.

The Corporation does not conduct random tests of its employees, but for certain classifications and circumstances will conduct such tests in accordance with the law. However, an employee who has tested positive previously will be required to have unannounced retesting per a conditional agreement that is signed in conjunction with a disciplinary action and/or rehabilitation program. Also, it is the policy of SABER to conduct drug and alcohol screening for reasonable suspicion if a supervisor or higher management personnel believes an employee is under the influence of such substances, suffers from substance abuse, or is in violation of Corporation rules or regulations concerning the use of such substances.

SABER can also authorize a fitness for duty examination for employees. This examination is administered when the Corporation has concerns about the employee's physical ability to perform his/her job. This physical will include a consultation with the employee's private physician, a review of the employee's medical records, and an examination of the employee. A drug and alcohol screen will also be included.

The bottom line is: SABER WANTS A DRUG FREE WORK PLACE.

It's your choice -- because it's your life!

Just say NO to drugs!

### **How Is An Individual Tested For The Presence Of Drugs?**

Employee will be referred to a specific location where urine is collected in accordance with a very specific procedure that ensures that the specimen has not been tampered with. This procedure is consistent with standards developed for drug testing by the Department of Defense drug-testing program.

The initial test is a sensitive, rapid, and a reliable procedure to identify negative and presumptive positive specimens.

If the initial test is positive, a confirmatory drug test is performed. This second analytical procedure is a gas chromatography/mass spectrometry (GC/MS). This is the state-of-the-art drug testing method for confirming the presence of drugs and is highly accurate.

## **Cause for Dismissal, Demotion or Suspension**

The following are declared to be cause for dismissal, demotion or suspension of an employee without pay though charges may be based on causes other than those enumerated:

- A.** That the employee is incompetent or inefficient in the performance of his duty.
- B.** That the employee has been offensive in his conduct toward his fellow employees, SABER or the public.
- C.** That the employee has some permanent or chronic physical or mental ailment or defect which incapacitates him/her from the proper performance of his/her duties.
- D.** That the employee has violated any lawful or official regulation or order, or failed to obey any lawful and reasonable direction given him by a supervisor, when such violation or failure to obey amounts to insubordination or serious breach of discipline which may reasonably be expected to result in lower morale in the organization or result in loss, inconvenience or injury to SABER service or to the public.
- E.** That the employee has solicited or taken for personal use a fee, gift or other valuable thing in the course of his work or in connection with it, when such fee, gift or other valuable thing so solicited or given him might be construed to be a means of receiving a favor or obtaining better treatment than that accorded other persons either on a present or a future basis. This will include but not be limited to social and or personal relations of any kind with clients or students outside office, classroom or clinical setting/hours.
- F.** That the employee through negligence or willful conduct has caused damage to public property or waste of public supplies.
- G.** That the employee has been absent without leave or has failed to report after leave of absence has been disapproved, revoked, or cancelled by the appointing authority or the Chief Executive Officer, provided, however, that if such absence or failure to report is excusable, the Chief Executive Officer may, upon recommendation of the appointing authority, dismiss the charges.

- I.** That the employee has hindered the regular operation of the department or division because of excessive absenteeism.
- J.** That the employee has violated the provisions of departmental rules.
- K.** That the employee has been intoxicated on duty.
- L.** That the employee, after employment, is found to have made a false statement in his/her application for employment.
- M.** That the employee has misappropriated funds, appropriated SABER property for personal use, or illegally disposed of SABER property.
- N.** That the employee is antagonistic towards superiors and fellow employees criticizing orders, rules and policies, and whose conduct interferes with the proper cooperation of employees and impairs the efficiency of the Corporation service.
- O.** That the employee has been habitually tardy in reporting for duty or has absented himself frequently from duty during regular hours, or has refused to perform a reasonable amount of emergency work after working hours when directed to do so by his superior officer.
- P.** That the employee refuses to have his finger-prints or photograph taken when directed to do so.
- Q.** That the employee has been subject to an excessive number of accidents, resulting in personal injury or injury to others.
- R.** That the employee, whose position requires the operation of a motor vehicle in the performance of his duties, has lost his/her auto or drivers license or lost driving privileges by due process of law.
- S.** That the employee has violated any of the provisions of the SABER rules.

None of the foregoing shall be deemed to prevent the dismissal, of an employee for any cause which is justifiable, even though such cause is not contained among those enumerated; provided, however, that a permanent status employee shall have the right of appeal.

## **Layoff Procedures**

1. A layoff is defined as termination of employment due to shortage of work or funds, the abolition of a position, changes in organizational duties and or termination of a contract at the end of each contract year.
2. An employee shall be laid off without prejudice since layoff is not a disciplinary action.

## **Resignation in lieu of disciplinary action**

Where a decision is made, to permit an employee to resign in lieu of dismissal the employee must submit a resignation in writing. This resignation shall be held for 24 hours after which it shall become final unless retracted during the 24 hour period.

This rule applies only when a resignation is accepted in lieu of dismissal and the employee must have been told that he/she will be terminated in the absence of the resignation. Resignations may be accepted in lieu of termination at the discretion of the Chief Executive Officer.

## **Notice**

Formal notification to the employee of a termination shall be in the form of a letter spelling out specifications.

The employee should sign for a copy of this letter, if presented personally, or the letter should be sent to the employee by certified mail. Copies shall be provided to the Personnel Office and the employee's record.

# **Clery Act**

## **Purpose**

It is the policy of SABER to provide the employees, clients and students with a safe environment in which to work and learn, and to keep students, and employees well informed about campus security. It is the policy of SABER to report criminal actions and other emergencies occurring on campus and to maintain records of crimes reported to campus authorities.

The institution's community is responsible for reporting criminal actions and other emergencies occurring on campus to their immediate supervisors, who will in turn report them to the COO, and who keeps records of crimes reported. If assistance is required from the police or fire unit, Administration will contact the appropriate unit. If danger is imminent, any Department Head may do likewise. SABER will make a reasonable good-faith effort to obtain crime statistics from appropriate law enforcement agencies, to include in an annual security report and the Web-based report to ED. Those wishing to see the area's crime report can access: [www.miamidade.gov/myneighborhood](http://www.miamidade.gov/myneighborhood).

- A.** There shall be a Clery Act Compliance Committee (CACC) to be responsible for compliance with the Clery Act of 1990 and the United States Department of Education regulations 34 CFR Part 668. Representatives from Administration, faculty, and admissions will be part of this committee.
- B.** The CACC shall meet once a year to coordinate the crime statistic record keeping or any other pertinent matters. SABER policies require that any criminal activity be reported to a SABER supervisor who in turn will report to the Personnel Manager. Therefore, SABER's Personnel Manager shall be responsible for gathering and sorting all reportable statistics for the annual Compliance Statement from all on-campus and all available off-campus resources. Personnel Manager shall be responsible for the daily crime log, annual crime statistics and timely warnings.

- D.** Each Department Head will be instrumental in identifying all actions that have been referred for campus disciplinary action in the areas of liquor law violations, drug law violations and illegal weapons possession.
- E.** Each Department Head will be responsible to notify its pertinent campus community when there is confirmation of a significant emergency or dangerous situation involving an immediate threat to the health or safety of students or staff occurring on campus. Notification may be verbal or by the use of electronic and cellular communication, whichever is more expedient. In this instance tested emergency response and evacuation procedures may be implemented if necessary.
- F.** Each Department Head will be responsible for publicizing emergency response and evacuation procedures to students and staff under their supervision.
- G.** Crimes of larceny-theft, simple assault, intimidation, and destruction, damage, or vandalism involving bodily injury to any person, in which the victim is intentionally selected because of the actual or perceived race, gender, religion, sexual orientation, ethnicity, or disability of the victim, will be collected and reported under the category of prejudice.
- H.** Student Admissions shall be responsible for insuring that prospective students have access to the annual Disclosure of Crime Statistics of the school.
- I.** Each Department Head is responsible for testing emergency response and evacuation procedures twice a year.
- J.** The Personnel Manager through the Administrative Offices shall be responsible for insuring that prospective employees have access to the Annual Disclosure of Crime Statistics.
- K.** The Personnel Manager and Campus Security Survey Administrator (CSSA), shall be responsible for preparation of the Annual Report of Crime Statistics of the school and the Web-based report to ED. The Personnel Manager and

Department Heads will be responsible for arranging for its delivery to all current students, faculty and staff. The Personnel Manager shall act as a resource to all campus personnel regarding on-going compliance with the Clery Act.

- L. The Institution, any of its officers, employees, or students may not participate in any activities to retaliate, intimidate, threaten, coerce, or otherwise discriminate against any individual with respect to the implementation of these policies.

## **Dissemination of Policy**

This policy will be implemented through SABER.

The Clery Policy is, and will continue to be, communicated to all relevant audiences.

- a) The policy is specifically included and will be a continuing and essential component of the personnel policies and procedures and catalog.
- b) It will be publicized in appropriate communication of the organization.
- c) The policy will be thoroughly discussed in orientation and all training programs, and in appropriate management and supervisory meetings, so that the organization's policy is made clear.

## **Affirmative Action Plan**

### **Statement of Policy**

SABER does not discriminate on the basis of age, color, disability, national or ethnic origin, race, sex, or any other characteristic protected by law in the administration of its educational, admission or registration policies, scholarships, loan programs, employment practices, or any of SABER administered programs.

SABER offers equal opportunity in its employment, admissions and educational programs and activities in compliance with Title VI and VII of the Civil Right Act of 1964, as amended, Section 504, of the Rehabilitation Act of 1973, as amended, and the American with Disabilities Act of 1990.

SABER is fully committed to assuring equal opportunity and equal consideration to all applicants, employees and participants regarding training, promotion, salaries and other compensation, transfer and layoff or termination. In the implementation of this policy, it will aggressively seek personnel for all staff job levels by upgrading and promoting its members and also by recruiting minority group individuals.

SABER shall likewise assure equal opportunity to any handicapped person who is an applicant, employee or client unless the disability involved prevents satisfactory performance of the work involved.

### **Reasonable Accommodations**

SABER is committed to providing reasonable accommodation to enable qualified employees and students with disabilities to perform the essential functions of their jobs or to attend SABER. Depending on the circumstances, reasonable accommodation may include modifying the environment, making facilities accessible, restructuring a job or class requirements, adjusting work schedules, granting leave, or other measures mutually agreed upon.

Any employee or student who believes accommodations are needed based upon disability is responsible for bringing the matter to the attention of their supervisor or instructor. In the case of disability, the employee or student may be required to provide medical documentation establishing the existence of a disability, any school-related restrictions, and the accommodation requested. All medical information will be kept confidential to the greatest extent possible.

### **Dissemination of Policy**

This policy will be implemented through SABER.

The Equal Employment Opportunity Policy is, and will continue to be, communicated to all relevant audiences.

- a) The policy is specifically included and will be a continuing and essential component of the personnel policies and procedures.
- b) It will be publicized in appropriate communication of the organization.
- c) The policy will be thoroughly discussed in orientation and all training programs, and in appropriate management and supervisory meetings, so that the organization's policy is made clear.
- d) Notices required by the Equal Employment Opportunity Commission, the Office of Federal Contract Compliance of the Department of Labor, and any state or city human rights agencies will be displayed in our offices and working areas.
- e) All sources contributing services to client's participants will be informed orally and in writing of the equal employment policy.

## **Responsibility for Implementation**

The designated official in SABER will be responsible for:

- a) Developing additional or amended policy statements as needed, additional Affirmative Action Plans, and internal and external communication techniques as directed by the Chief Executive Officer.
- b) Assisting in the identification or problems in administering this policy and helping to resolve them.
- c) Designing and implementing record keeping and audit systems that will measure the effectiveness of the SABER Affirmative Action Program, indicate the need for remedial actions and determine the degree to which the goals and objectives have been attained, keep the Chief Executive Officer of SABER informed of progress in attaining the objectives of the policy and Affirmative Action Programs and of the latest developments in the entire equal employment opportunity area.
- d) Provide reporting to and liaison with compliance agencies.

## **Confidentiality of Client / Student Information**

All information held in client's/student's record is confidential. SABER employees are required to maintain the confidentiality of information regarding clients/students. Information regarding clients/students shall not be exchanged or released without the individual's written consent. Access to records shall be restricted to program staff with the need to know and to government agencies governing, licensing and/or accrediting the programs.

## **Copyright Infringement Policies and Sanctions (Including Computer Use and File Sharing)**

Incidents of abuse or misuse of SABER's computer resources will be reported to the appropriate agency head. Users who violate this Policy will be subject to penalties up to and including suspension and/or dismissal from SABER. Illegal actions will be reported to the appropriate department head, who will convene a committee to hear investigate and report outcome to COO. Administration will take appropriate action as dictated above including report to local, state, or federal law enforcement agency for investigation and possible prosecution.

Any unauthorized use of materials protected by copyright or other intellectual property rights is strictly prohibited by this Policy and will be considered Copyright Infringement. This infringement will include illegal downloading or unauthorized distribution of copyrighted material, including unauthorized peer-to-peer file sharing (File sharing is the practice of distributing or providing access to digitally stored information, such as computer programs, multi-media (audio, video), documents, or electronic book) Staff or Students violating this policy may be subject to suspension, dismissal and/or civil and criminal liabilities after protocol described on paragraph 1.

# **Personnel Programs, Records, and Reports**

## **Statement of Policy**

The Chief Executive Officer shall designate an employee to serve as the Corporation's personnel officer or representative who shall have the responsibility for administering, within the Corporation, all personnel programs and these rules and regulations.

The designated employee shall establish and maintain all records required by these rules and regulations and any other records which are necessary to substantiate compliance with all laws relating to personnel matters and all provisions of these rules and regulations.

## **Employee Records**

- A.** The Corporation shall maintain individual personnel file for each employee which shall include, but not be limited to, the following:
1. A copy of the employment application.
  2. A copy of any medical examination reports, if applicable.
  3. A report of personnel action reflecting each appointment.
  4. A Job Description.
  5. A copy of any correspondence directly related to the employee's record.
  6. A copy of Diploma or Transcripts whenever required by the position.
  7. A copy of all performance evaluations.
  8. A résumé
  9. A Copy of Continuing Education Certificates if needed by the position.
  10. Form CIE 402 if necessary.
  11. Form W-4 Internal Revenue Service
  12. Form I-9 Employment Eligibility Verification
  13. Copy of Social Security Card, Driver's License, proof of citizenship and/or proof of lawful legal status to reside in the United States.

- B. The employment application which is to be made a part of the employee's individual personnel file shall be completed, signed and filed.
- C. An approved copy of each report of personnel action shall be furnished to the official who is responsible for preparing the Corporation's payroll, and such form shall be the only authority for making payroll changes.
- D. An employee, on request, shall have the right to review his or her personnel file. On written request of an employee, a person so designated by the employee, shall have the right to review the employee's personnel file.

## **Attendance and Leave Records**

Attendance and leave records shall be established and maintained for all employees and shall include, but not be limited to, annual leave earned, used and accrued; sick leave earned, used and accrued; compensatory leave credits used and accrued; and any other leave of absence with or without pay.

## **Accrediting and Licensing Agencies**

SABER College is Licensed by the **Commission for Independent Education Florida Department of Education**. Additional information regarding this institution may be obtained by contacting the Commission at:

325 W. Gaines Street  
Suite 1414  
Tallahassee, FL 32399-0400  
Telephone: (850) 245-3200 or Toll Free 1 (888) 224-6684  
License #1400

The Commission for Independent Education has statutory responsibilities in matters relating to nonpublic, postsecondary, educational institutions. In keeping with the Florida Department of Education's goals, some of these functions include consumer protection, program improvement, institutional policies and administration, data management, and the licensure of independent schools, colleges and universities.

SABER College is accredited by the **Council on Occupational Education**.

7840 Roswell Road, Building 300  
Suite 325  
Atlanta, Ga. 30350  
Toll free: (800) 917-2081

As articulated by its membership, the mission of the Council is “assuring quality and integrity in career and technical education.”

SABER College participates in the Title IV financial assistance programs approved by the US Department of Education. They may be contacted at:

Federal Student Aid/Program Compliance  
U.S. Department of Education  
830 First Street, N.E., UCP, 7<sup>th</sup> Floor  
Washington, DC 20202  
202-377-3057 phone  
202-275-3486 fax

The Physical Therapist Assistant Program at SABER College is accredited by the Commission on Accreditation in Physical Therapy Education (CAPTE). They may be contacted at:

Commission on Accreditation in Physical Therapy Education (CAPTE)  
1111 North Fairfax Street,  
Alexandria, Virginia 22314  
Telephone: 703-706-3245

email: [accreditation@apta.org](mailto:accreditation@apta.org); website: <http://www.capteonline.org>

## **Compliance with Policies**

Policies and Procedures at SABER are designed to ensure the orderly and efficient operation of the College so that a safe and productive workplace and an environment conducive to student learning can be provided. It is the responsibility of each employee to know, understand and comply with all policies approved by the Board of Directors and Advisory Committees of the college, as well as any procedures developed and approved by the CAO. Department Heads are responsible for steering all compliance activities which are reviewed bi-annually by the Advisory Committee. The Advisory

Committee Reviews compliance with program policies during its regular meetings, twice per year, during the months of April and November of each year. The committee reviews the Catalog, the Plans, Admission Policies, Facility, Equipment and Website, Programs curricula, length and current practices, and Program Outcomes. The Catalog and the Enrollment Agreement are reviewed during these Advisory Committee Meetings, and the new Catalog and/or agreement changes are made effective July 1<sup>st</sup> of each year. These reviews are based on input from staff and administration and are voiced at the meetings by the staff and administrative representatives.

In the meetings of the Advisory Committee, planned substantive changes are discussed, analyzed and the timeframe for effecting change is decided. The CAO is responsible for the unplanned substantive changes which are later discussed at the following Advisory Committee.

If the committee decides to change a level of accreditation or a change in the legal authority to provide postsecondary education, the CAO is responsible for effecting the change and completing all necessary documentation for the change.

Finally, any policy changes that may be needed in order to impact the outcomes are delineated in the following fashion: present policy, impact of present policy on the outcomes, new proposed policy, rationale for the new proposed policy, evidence of compliance and equitability of such policy, method of implementation and any considerations needed, timeline for change and cohorts impacted

## **Institutional Budgets**

SABER has developed budgets that allow the financial department to follow established procedures. Budget managers review budget activities showing available budgeted funds and geared to the expenditure reports. Each department head is responsible for controlling the costs within the established budget. The CFO prepares an annual budget for each program and for the institution at large, this budget begins July 1 and ends June 30<sup>th</sup> of the following year.

Purchase requisitions are reviewed by the Purchasing Department against the budget

for each specific department, to ensure availability of funds.

## **Annual Reports**

SABER complies with regulations established by Licensing and Accrediting bodies, submitting Annual Reports which account for the Colleges annual performance. CIE Annual Report is submitted on November of each year, COE Annual Report is submitted on December of each year, the Board of Nursing requires a report on October of each year. PTA Program must submit an Annual Accreditation Report on December 1<sup>st</sup> of each year.

## Definitions

For the purpose of administering these rules and regulations, the following words and terms shall have the meaning indicated:

**ABANDONMENT OF POSITION** - The desertion by an employee of the employee's position for three (3) consecutive workdays.

**ADMINISTRATIVE LEAVE** - Authorized leave of absence with pay not chargeable against an employee's accrue leave credits.

**ANNUAL LEAVE** - Authorized leave of absence with pay granted an employee for vacation or other personal purposes.

**APPOINTMENT** - The act of placing an employee in an established position.

**DEMOTION** - Moving an employee from a position in one class to a different position in another class having a lesser degree of responsibility and a lower maximum salary.

**DISMISSAL** - The action taken by the Corporation to separate the employee from the position.

**FULL-TIME POSITION** - A position authorized for the entire normally established work period, daily, weekly, monthly, or annually.

**LAY-OFF** - Termination of employment due to abolishment of positions necessitated by a shortage of funds or work, or a material change in the duties or organization of the Corporation.

**LEAVE OF ABSENCE WITHOUT PAY** - Authorized leave of absence granted an employee for which period the employee shall receive no pay.

**MATERNITY LEAVE** - Leave of absence without pay as requested by an employee for a period of up to three (3) months of anticipated childbirth. In case of adoption, maternity leave shall not exceed three (3) calendar months.

**OVERLAP IN POSITION** - A condition in which two employees are placed in the same position for the training of one employee to take over the duties of another employee, or for performing the duties of an employee who has been placed on leave with or without pay due to the employee's personal illness, injury or disability.

**PERFORMANCE EVALUATION** - The overall rating given an employee for the employee's performance during a specific period of service. Each employee shall be given one of five (5) levels of performance evaluation in accordance with the employee's overall level of performance and the following definitions:

- A. Outstanding - An evaluation resulting from performance which is highly satisfactory and considerably above the performance standards of the position to which an employee has been assigned, and which cannot be exceeded by any appreciable difference by another employee.
- B. Above Satisfactory - An evaluation resulting from performance which has been above the standard performance requirements of the position to which an employee has been assigned.
- C. Satisfactory - An evaluation resulting from performance which fully meets the performance standards of the position to which an employee has been assigned.
- D. Conditional - An evaluation resulting from performance which fails slightly to meet the minimum performance requirements for the position, but the employee shows potential for some improvement.
- E. Unsatisfactory - An evaluation resulting from performance which fails considerably to meet the minimum performance standards of the position to which an employee has been assigned.

**POSITION** - The work, consisting of duties and responsibilities, assigned to be performed by an officer or employee.

**PROBATIONARY PERIOD** - A working-test period required of an employee following appointment to any class in which the employee does not hold permanent status.

**REASSIGNMENT** - Moving an employee from a position in one class to a different class having the same degree of responsibility and the same maximum salary.

**RESIGNATION** - A voluntary act by an employee to terminate employment in the Corporation.

**SICK LEAVE** - Authorized leave of absence with pay granted an employee for the employee's personal illness and injury.

**TRANSFER** - Moving an employee from one worksite to another.